

JUSTIFICATION FOR PATENTABLE INVENTION: THE PATENT GRANT

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INTRODUCTION:

Intellectual Property (IP) Law is concerned with legal rights associated with creative efforts or commercial reputation and goodwill.¹ IP Law governs the regulation and protection of intellectual property and intellectual property rights. Cornish et al, described Intellectual Property rights as negative rights.² This means that IP rights does not necessarily confer a right holder the ability to exploit his IP, it rather deters others from the use or exploitation of such IP without license of the right-holder. A right holder does not require IP protection to personally exploit his intellectual property.

According to the World Intellectual Property Organization, a patent is the grant of exclusive rights over an invention; a product or a process that provides, in general, a new way of doing something or offers a new technical solution to a problem.³ It is a form of market monopoly granted to investors by a government authority as an incentive to invent or innovate. This grant is usually for the period of 20 years.⁴

Over time, arguments have arisen against the grant of market monopoly in the form of patents to inventors. This paper highlights the theories that have been canvassed in return, and the criticisms following the theories. This paper also explores inventions that are patentable with relevant legislations. The procedure for the grant of patents for inventions in Nigeria is also discussed.

1.0. JUSTIFICATION FOR PATENT

Generally, Patents are concerned with information. Patents contain information on how to create, perform or operate a product or process. In itself, information is a free good which is inexhaustible by mere use. Different persons can use the same information at the same time

¹ Bainbridge D, (2012) *Intellectual Property* 9th Ed. (Pearson Education Ltd: London).

² Cornish W, Llewelyn D, and Aplin T, (2013) *Intellectual Property: Patents, Copyright, Trademarks and Allied Rights* 8th Ed. (Sweet & Maxwell: UK).

³ <https://www.wipo.int/patents/en> accessed 11th January, 2023.

⁴ <https://www.hg.org/legal-articles/patent-and-designs-act-1990-patentability-of-inventions-in-nigeria-21399> accessed 11th January, 2023.

with no ill consequences. However, information is also a public good. This means that, without some form of legal protection, information becomes non exclusive once it is disclosed.

Therefore, in the absence of some sort of protection for Patents, once an invention process has been disclosed, it becomes public good, and it can be freely appropriated and its value diminished for its original owner or creator. The public information thus copied and the invention reproduced without compensation to the original inventor results in a drop in value, as market forces, including competition, will push the price down.

Patents basically deal with the problems of the free and public nature of information by giving patentees an exclusive right over their inventions. Advocates of free information argue that such exclusive rights and protection are not beneficial to the world. This is because, like other forms of intellectual property protection, patents places a limitation on free access to information of otherwise useful human inventions. This gives rise to the need to provide some sort of justification for Patent.

There are a plethora of theories or justifications backing the rationale for patents. For the purpose of this paper, they will be classified thus:

- a) Natural/Moral Right theory
- b) Reward theory
- c) Incentive theory

1. NATURAL/MORAL RIGHT THEORY:

One of the justifications for Patents is that the claim that individuals should be entitled to control and reap the fruits of their labor. The idea behind it is that the person who clears unowned land, cultivates crops, builds a house, or creates a new invention, obtains property rights by engaging in these activities. Laboring, producing, thinking, and persevering are voluntary, and individuals who engage in these activities are entitled to what they produce.⁵

This theory, also referred to as deontological theory, is said to accord with the view of renowned philosophers on property rights such as John Locke's labour theory. Locke introduces the idea of work or labour and entitlement thus:

⁵ <https://plato.stanford.edu/entries/intellectual-property/#JustCrit> accessed 11th January, 2023.

‘Though the earth, and all inferior creatures be common to all men, yet every man has a property in his own person. This nobody has any right to but himself. The labour of his body and the work of his hands, we may say, are properly his. Whatsoever, then, he removes out of the state that nature hath provided and left it in, he hath mixed his labour with it and joined to it something that is his own, and thereby makes it his property...’⁶

Applying Locke's theory to intellectual property, it can be said that every person has property right to their intellectual labour.⁷

The natural rights theory is a moral justification based upon the belief that an individual is entitled to the natural property right in his ideas. By extension, this means that creators also have a natural right to the sole exploitation of their ideas, and any unauthorized use by others without compensation must be condemned as theft. This property is exclusive and personal, and therefore society (and also the state) is under a moral obligation to recognize and protect this right.⁸

- **Criticism**

The major criticism for the natural/moral right theory is the argument that if property in ideas is a natural right, then there is little or no logical basis for that right to be limited to a term of years; it should rather be perpetual.

It has also been argued that no person can have exclusive right to the possession of an idea after revealing it to others. Also, the notion of property as understood in the context of material things typically cannot be applied to ideas, which are not embodied in material objects. Unlike in the case of material things, the use of someone's idea (a non-material item) does not deprive its owner of the possibility to make use of his or her own invention.

2. REWARD THEORY:

Patents have been justified on the idea that it is a reward for the efforts of the inventor. It is to secure for the inventor, his just reward, proportional to the usefulness of the invention to

⁶ Locke J, (1988) *Two Treatises of Government*, Second Treatise, 3rd Ed. (Cambridge University Press: England).

⁷ <https://www.semanticscholar.org/paper/Deserving-to-Own-Intellectual-Property-Becker/c2dca6a2b40f3e18891707af3b0541f6fbf5711b?p2df> accessed 11th January, 2023.

⁸ https://e-courses.epo.org/wbts_int/litigation/Justification.pdf accessed 11th January, 2023.

society. This reward cannot be guaranteed by reliance upon ordinary market forces, therefore, state intervention is justified in the provision of a Patent, which is a temporary right.

This theory is described as a utilitarian view supported by Jeremy Bentham's theory of utilitarianism which argues that laws are socially justified if they bring the greatest happiness, or benefit, to the greatest number of people.

- **Criticism**

Opponents of this theory argue that almost all inventions are products of progress taking place in the society as a whole than the result of individual genius. The creation of an invention by a particular person is, as a result, mainly a matter of luck, and thus, there is no need to reward someone for being the first to come up with a given idea.

3. INCENTIVE THEORY:

This is the most persuasive justification for patents. It is an economic approach that posits that the patent system provides the necessary incentives to invent, and to invest in the process of invention. This position is based on the assumption that no sufficient amount of inventions can be achieved without inventors and investors alike looking forward to the prospect of obtaining extraordinary profits. It was argued that the most efficient method for creating appropriate stimulus is the awarding of a temporary monopoly in the form of exclusive patent rights to the invention adopted the perspective that only an anticipated profit along with the possibility of possessing a monopoly resulting from the patenting of an invention can drive inventors and investors to take on pioneering research and experiments.⁹

In the light of the above, it can be stated that patent protection guaranteeing monopoly of profits is a key factor in determining the human motivation to undertake research works, as a result of which inventions and innovations may arise.¹⁰ This theory supports the obvious link between the patent system and economic development by highlighting patents as a beacon of industrial and economic progress. This has undoubtedly resulted in the incentive theory becoming one of the most favored justifications for patents.

⁹ <https://reader.elsevier.com/reader/sd/> accessed 11th January, 2023.

¹⁰ *Ibid.*

Without the protection offered by the patent system, no one would readily invest in the process of an invention, as they would know that the end product could easily be copied by others who had not had to endure the costs of development. Also, no one would ever disclose a secret process for this same reason. Without protection, others could use it freely, thereby eroding any advantage the inventor had.

Criticism

One of the criticisms is that for many people, who naturally love to create and implement innovative technologies, no monetary reward or stimulus is necessary, and that if some encouragement is required, then it should be rather in the form of recognition or awards. Another criticism is that patents create improper incentives. For instance, a company in the field of production can change into the field of research and development to access a patent. They could also switch from other areas in which there is no possibility of receiving patent protection into areas that allow the attainment of a monopoly position through patents.¹¹

2.0. PATENTABLE INVENTION

Patentable inventions are inventions in respect of which patent is granted under the law. The grant of the right of patent to an invention is vested in the statutory inventor, employer, commissioner of a work, assignee or licensee. For this right of patent to be granted, the invention must be patentable. Patent is regulated in Nigeria by the Patents and Designs Act (PDA),¹² which protects inventions that fall within patentable subject matter. Section 1 of the PDA stipulates the circumstances under which an invention may be considered patentable. It provides that an invention is patentable if

- i. it is new, results from inventive activity and is capable of an industrial application; or
- ii. if it constitutes an improvement upon a patented invention and also it is new, result from inventive activity and is capable of industrial application'.¹³

¹¹ *Ibid.*

¹² Cap. P2 Laws of the Federation of Nigeria 2004.

¹³ Emphasis mine.

- a) **NEW:** An invention is new if it does not form part of the state of arts (in other words, everything concerning that field of knowledge which relates to the invention has not been made public anywhere, at anytime and by whatever means before the date of the filing of the patent application). An invention shall however not be regarded as having been made available to the public merely because the inventor or his successor in title exhibited same in an official exhibition, within a period of six months preceding the filing of a patent application.¹⁴
- b) **INVENTIVE ACTIVITY:** an invention is said to result from inventive activity if it does not obviously follow from the state of the art; as to the method, the application, the combination of methods, or the product which it concerns, or as to the industrial results which it produces.¹⁵
- c) **INDUSTRIAL APPLICATION:** An invention is said to be capable of industrial application if it can be manufactured or be used in any kind of industry, including being usable for agricultural purposes.¹⁶

From the foregoing, an invention which has been made public or a product of common knowledge in a field is not new and therefore not patentable. Similarly, an invention that cannot be manufactured or used in any kind of industry, including Agriculture, is not patentable. Also, a patent cannot be validly obtained in respect of plant or animal varieties, or essentially biological processes for the production of plants and animals (other than microbiological processes and their products). Inventions that are contrary to morality or public order are also not patentable.¹⁷

Where an invention has met the conditions for patentability as identified above in a particular situation, the grant of letter patent can then be made with respect to the invention in issue.

THE PATENT GRANT

Procedure for the grant of a Patent in Nigeria

¹⁴ See section 1(2)(a) of the PDA.

¹⁵ See section 1(2)(b) of the PDA.

¹⁶ See section 1(5) of the PDA.

¹⁷ See section 1(4)(a) and (b) of the PDA.

When the conditions qualifying an invention for a patent as identified above have been met, an application shall be made to the Registrar of Patents and Designs (the "Registrar") and shall contain the following:

- a) The applicant's full name and address, and if the address is outside Nigeria, there should be an address for service within Nigeria;
- b) A description of the relevant invention with any appropriate plans and drawings;
- c) A claim or claims (for any number of products, processes or applications), however, an application shall relate to one invention only;
- d) The application is to be accompanied by the prescribed fees as determined by the Registry from time to time;
- e) Where appropriate, a declaration by the true inventor of the product supplying his name and address and requesting that he be mentioned as such in the Patent;
- f) Where the application is submitted by an agent, a power of attorney authorizing the donee of the power of attorney to that effect.¹⁸

Patent grant

Upon the satisfaction of the Registrar that the application conforms to the requirements of the Act, the Patent will be granted and the Patent Registrar shall issue, on behalf of the President of Nigeria, a Certificate that contains the following details:

- Number of the patent in the order of grant
- Name and address of the Patentee
- The date of the Patent application and the grant
- Number and date of the application on which the claim is based and the name of the country where it was made.
- The description of the invention with the relevant plans and drawings.¹⁹

Duration of Patent

A patent shall expire 20 years after its application was filed. A patent can also lapse if its annual fees are not paid for six months after the due time.²⁰

¹⁸ See section 3(1) of the PDA.

¹⁹ See section 4 of the PDA.

²⁰ See section 7 of the PDA.

